

25SMCV00751 25SMCV00751

County: los-angeles

Division: Civil Law and Motion

Department: 205

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Case Number: 25SMCV00751 Hearing Date: September 23, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

CHRISTOPHER BELTRAN, et al.,

Plaintiffs,

v.

GLOBAL INTEGRITY REALTYCORPORATION, et al.,

Defendants.

Case No.: 25SMCV00751

Hearing Date: September 23, 2026

[TENTATIVE] order RE:

PLAINTIFFS' MOTION TO VACATE

RULING ON DEFENDANT's demurrer

to first amended complaint and

reset hearing

This hearing is on Plaintiffs' motion to vacate the Court's order sustaining Defendant's demurrer to Plaintiffs' first amended complaint and reset the hearing on the demurrer. The motion seeks mandatory relief pursuant to Cal. Civ. Proc. Code section 473(b). Plaintiffs argue that their counsel failed to appear at the hearing on the demurrer because of a car emergency involving his son, and counsel was not able to reach his co-counsel.

Section 473(b) states (in relevant part): "[T]he court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect." (§ 473(b), italics added.)

Thus, for mandatory relief to be granted to a plaintiff, the relief (1) must be sought within six months after entry of judgment, (2) be accompanied by an attorney's sworn affidavit, (3) involve a dismissal, and (4) the dismissal must be caused by the attorney's mistake, inadvertence, surprise or neglect.

Here, there has been no entry of judgment, and accordingly, Plaintiffs' filing of the motion to vacate is timely. Plaintiffs' motion is accompanied by a sworn affidavit by their counsel which Plaintiffs argue support a showing of excusable neglect. In any event, pursuant to 473(b), Plaintiffs are not required to show excusable neglect. The range of attorney conduct for which relief can be granted in the mandatory provision is broader than that in the discretionary provision and includes inexcusable neglect. (*Tackett v. City of Huntington Beach* (1994) 22 Cal.App.4th 60, 65 [27 Cal. Rptr. 2d 133] ["a mea culpa declaration by an attorney establishing that a default, default judgment, or dismissal was entered against his or her client as the result of attorney neglect deprives the trial court of discretion to deny relief, even without a showing that the neglect was excusable."].)

As to whether there has been a "dismissal", numerous Court of Appeal decisions have limited the reach of Section 473(b) as it relates to relief from a "dismissal." Although the statutory language "on its face, 'affords relief from unspecified 'dismissal' caused by attorney neglect, our courts have, through judicial construction, prevented it from being used indiscriminately by plaintiffs' attorneys as a 'perfect escape hatch' [citations] to undo dismissals of civil cases."

For example, "[c]ourts have held the mandatory provision is inapplicable to voluntary dismissals [citation] and dismissals for lapsing of the statute of limitations [citation], failure to serve a complaint in a timely manner [citation], failure to prosecute [citation], and failure to file an amended complaint after a demurrer has been sustained with leave to amend." (*Gotschall*, supra, 96 Cal.App.4th at 483–484; see also *Urban Wildlands*, 10 Cal.App.5th at 999 [listing additional cases declining to apply mandatory provision, including in summary judgment context].)

As to demurrers, however, the California Court of Appeal has held that the sustaining of a demurrer is a "dismissal" for purposes of Section 473(b). (*Pangini v. Union Bank, N.A.* (2018) 28 Cal.App.5th 298, 304.) The *Pangini* court cited to section 581 ("Dismissal; definitions") which states that "[a]n action may be dismissed," including "after a demurrer to the complaint is sustained without leave to amend and either party moves for dismissal." (§ 581, subds. (b), (f)(1).)

Turning to the last requirement for mandatory relief, the Court must consider whether the Court's order on the demurrer was a result of counsel's failure to appear at the hearing. The Court concludes that it was not. The Court's ruling was based on the merits of the demurrer, and not because of the nonappearance of Plaintiffs' counsel. Vacating the ruling and re-setting a hearing on the demurrer would be a complete waste of the Court's and parties' time. Accordingly, the Court DENIES the motion to vacate.

DATED: September 23, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court